



Severn Bridge Tolls Act 1965

1965 CHAPTER 24

An Act to empower the Minister of Transport to levy tolls in respect of the use of a new road which crosses the Rivers Severn and Wye; to enable that Minister, in relation to that new road, to impose prohibitions, restrictions and other requirements for the purpose of preventing obstruction and for the protection of property and otherwise; to provide for the extinguishment of any franchise to operate a ferry across the River Severn in the vicinity of the new road, and to enable compensation to be paid to persons operating any such ferry; and for purposes connected with the matters aforesaid.

[5th August 1965]

Most Gracious Sovereign,

W^E, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the tolls hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Tolls

1.—(1) The Minister of Transport (in this Act referred to as “the Minister”) shall have power, subject to and in accordance with the following provisions of this Act, to levy tolls in respect of vehicles using the specified carriageways.

Power to levy tolls for use of specified carriageways.

(2) In the following provisions of this Act "toll" means a toll leviable under this Act.

(3) In this Act "the specified carriageways" means so much of any carriageway forming part of the new road as lies between—

- (a) the most westerly point before reaching the River Severn at which traffic of Classes I and II travelling westwards along the new road can leave that road by another special road, and
- (b) the most easterly point before reaching the River Wye at which traffic of those classes travelling eastwards along the new road can leave that road by another special road,

and any reference to the specified carriageways includes a reference to any part of the specified carriageways.

(4) In this Act "the new road" means the road constructed, or in the course of being constructed, by the Minister along the line described in Schedule 1 to the North of Almondsbury—South of Haysgate Trunk Road Order 1947 (as varied by any scheme made under the Highways Act 1959, whether before or after the passing of this Act) and referred to in that order as "the new road", and "Classes I and II" means Classes I and II as specified in Schedule 4 to the Highways Act 1959.

S.R.O. 1947
No. 1562.
1959 c. 25.

Orders
relating
to tolls.

2.—(1) The Minister may by order make provision as to the classes of vehicles using the specified carriageways in respect of which the tolls are to be levied, and as to the scales and other provisions in accordance with which they are to be levied.

(2) Any such scales or other provisions may provide for tolls to be levied at different rates by reference to such circumstances or combination of circumstances (whether relating to classes of vehicles, seasons of the year, days of the week, times of day or otherwise) as the Minister may consider appropriate.

(3) Provision may be made by any such order for enabling persons to compound in advance for the payment of tolls, at such rates as may be specified in the order; and any such provision may include provision for the issue of season tickets or prepaid vouchers to persons so compounding.

(4) For the avoidance of doubt it is hereby declared that the classes of vehicles specified in an order in pursuance of subsection (1) of this section need not correspond with the classes of traffic specified in Schedule 4 to the Highways Act 1959.

(5) An order under this section may provide that vehicles of any description specified in that behalf in the order (notwithstanding that they are vehicles of a class specified in the

order in pursuance of subsection (1) of this section) shall be exempted from the payment of tolls.

3.—(1) Where the Minister proposes to make an order under section 2 of this Act, he shall prepare a draft of the order and shall publish in at least one local newspaper circulating in the locality in which the eastern end of the specified carriageways is situated, and in at least one local newspaper circulating in the locality in which the western end of the specified carriageways is situated, and in the London Gazette, a notice—

Procedure for making orders under section 2.

- (a) stating the general effect of the proposed order ;
- (b) naming a place or places in each of those localities where, at all reasonable hours during the period of six weeks from the date of first publication of the notice, a copy of the draft order may be inspected by any person free of charge ; and
- (c) stating that, within the period beginning with the date of first publication of the notice and ending six weeks after the latest date of publication of the notice, any person may by notice in writing to the Minister object to the making of the order.

(2) Not later than the date of first publication of that notice, the Minister shall serve a copy of the notice and of the draft order on each of the county councils.

(3) If, within six weeks from the latest date of publication of the notice, any objection to the proposed order is received by the Minister and the objection is not withdrawn, then—

- (a) if the objection is from either of the county councils, from any other local authority in England or Wales or from any such organisation or other body as is mentioned in Schedule 1 to this Act, the Minister shall cause a local inquiry to be held ;
- (b) in the case of any objection not falling within the preceding paragraph, the Minister may cause a local inquiry to be held if he thinks fit.

(4) After considering any objections to the proposed order which are not withdrawn, and, where a local inquiry is held, the report of the person who held the inquiry, the Minister may make the order either without modification or subject to such modifications as he thinks fit.

(5) As soon as may be after an order under section 2 of this Act has been made, the Minister shall—

- (a) publish, in the manner specified in subsection (1) of this section, a notice stating that the order has been made and naming a place or places in each of the

localities so specified where a copy of the order may be inspected by any person free of charge at all reasonable hours, and

(b) serve a copy of the order on each of the county councils.

1933 c. 51.

(6) The provisions of subsections (2) to (5) of section 290 of the Local Government Act 1933 (which relates to the giving of evidence at, and defraying the cost of, local inquiries) shall have effect with respect to any inquiry held in pursuance of this section.

(7) In this section "the county councils" means the councils of the administrative counties of Gloucester and Monmouth respectively; "local authority" means the council of a county, county borough or county district; any reference to the date of first publication of a notice is a reference to the date on which it is first published, in accordance with subsection (1) of this section, in a newspaper other than the London Gazette; and any reference to the latest date of publication of a notice is a reference to the date, or (if more than one) the latest date, on which it is published by the Minister in accordance with that subsection.

General
limitations on
power to levy
tolls.

4.—(1) Subject to the following provisions of this section, the power to levy tolls shall cease to be exercisable at the end of the period of forty years beginning with the date on which the new road becomes open for use as a special road.

(2) In the exercise of his powers under section 2 of this Act the Minister shall not specify scales of tolls exceeding those which in his opinion would be requisite to secure that, taking one year with another, the revenue produced by the tolls during the toll period, if applied for the purposes mentioned in Schedule 2 to this Act, would be sufficient, but not more than sufficient, for those purposes.

(3) If at any time during the period specified in subsection (1) of this section (or during that period as extended by a previous order under this section) it appears to the Minister that the aggregate revenue produced by the tolls is likely to fall short of what would be required for the purposes mentioned in that Schedule, the Minister may by order direct that the period shall be extended, or (as the case may be) further extended, by five years.

(4) An order under this section shall be of no effect unless it is approved by a resolution of the Commons House of Parliament.

(5) In Schedule 2 to this Act any reference to interest is a reference to interest at such rate as may be determined to be appropriate in accordance with any directions given in that behalf

by the Treasury ; and different rates may be so determined in relation to all or any of the following matters, that is to say, different times, different paragraphs of that Schedule, and different expenses referred to in any of those paragraphs.

(6) In this section and in Schedule 2 to this Act "the toll period" means the period specified in subsection (1) of this section, or, if one or more orders under this section have come into operation, means that period as extended by that order or those orders, as the case may be ; and in Schedule 2 to this Act "the relevant works" means—

- (a) those parts of the new road (including the specified carriageways) which lie between the points specified in paragraphs (a) and (b) of section 1(3) of this Act, and
- (b) any structure, works or apparatus on, under or over any of those parts of the new road or used in connection with the regulation of traffic on those parts of the new road or in connection with the levying of tolls.

5.—(1) Provision may be made by regulations made by the Minister under this section—

Regulations
for securing
payment
of tolls.

- (a) for the designation of one or more places on or near the specified carriageways at which tolls (other than tolls previously compounded for) are to be paid ;
- (b) as to the persons by whom such tolls are to be paid, and the manner in which they are to be paid, whether by paying them to a person authorised to receive them or by placing coins in apparatus provided for the purpose or otherwise ;
- (c) for securing that vehicles in respect of which tolls are leviable do not use the specified carriageways without payment of the tolls.

(2) In relation to vehicles using the specified carriageways and approaching a place designated in accordance with paragraph (a) of the preceding subsection, regulations made in pursuance of paragraph (c) of that subsection may include provisions for prohibiting or otherwise preventing any such vehicle from further proceeding along the specified carriageways until any toll leviable in respect of the vehicle has been paid.

(3) Any such regulations may provide that, if tickets or receipts are issued to persons paying tolls, the person in charge of a vehicle in respect of which any such ticket or receipt has been issued shall, at any time when the vehicle is using the specified carriageways, produce the ticket or receipt, on being required to do so, for inspection by any person designated by or under the regulations.

(4) Regulations under this section may include such provisions as the Minister may consider appropriate for adapting or modifying the general provisions of the regulations in relation to vehicles in respect of which tolls have been compounded for, including provisions as to the production and surrender of season tickets or prepaid vouchers.

(5) Any regulations made under this section shall provide for a notice, specifying the classes of vehicles in respect of which tolls are leviable, and the scales and other provisions for the time being in force in accordance with which they are leviable, to be displayed at each place designated in accordance with subsection (1)(a) of this section.

Temporary
suspension
or reduction
of tolls.

6.—(1) At any time while an order under section 2 of this Act (in this section referred to as “the principal order”) is in force, the Minister, subject to the following provisions of this section, may make an order providing that, during such period, not exceeding eighteen months, as may be specified in the order under this section, the tolls leviable in accordance with the principal order shall be suspended, or shall be reduced to such extent as may be specified in the order under this section.

(2) An order under this section may provide for suspension or reduction of tolls either generally or by reference to any circumstances, or combination of circumstances, as mentioned in section 2(2) of this Act; and, in so far as the suspension or reduction is in respect of a particular class of vehicles, that class may be a class corresponding with one of those specified in the principal order or not, as the Minister may consider appropriate.

(3) Not less than twenty-one days before making an order under this section, the Minister shall give public notice of his intention to do so.

(4) Without prejudice to the preceding provisions of this section, at any time when, by reason of any accident or other emergency, it appears to the Minister to be necessary to do so, he may direct that the tolls shall cease to be leviable—

(a) either during a period specified in the direction or until the direction is revoked by a further direction given by the Minister, and

(b) either in respect of all vehicles using the specified carriageways or in respect only of vehicles using them for travelling from east to west, or from west to east, as may be specified in the direction.

(5) Nothing in this section shall affect any power to vary or revoke an order under section 2 of this Act.

Prevention of obstruction and damage

7.—(1) For the purpose of preventing obstruction of the specified carriageways, the Minister may make regulations under this section— Removal of stationary vehicles.

- (a) prohibiting vehicles from stopping or remaining at rest on the central section of those carriageways except in such circumstances as may be specified in the regulations, and
- (b) making such provision as is mentioned in the following provisions of this section with respect to vehicles which, either in contravention of the regulations or in such circumstances to which subsection (2) of this section applies as may be specified in the regulations, are for the time being at rest on that section of those carriageways.

(2) The circumstances to which this subsection applies, in relation to any vehicle, are any circumstances in which—

- (a) it is necessary for the vehicle to remain at rest by reason of breakdown, or
- (b) no person is for the time being in charge of the vehicle or the person in charge of it is not present in or on the vehicle.

(3) Regulations made under this section may require the person (if any) in charge of any vehicle which is at rest on the central section of the specified carriageways in circumstances falling within paragraph (a) of the last preceding subsection to take such steps as may be specified in the regulations for reporting that fact and the position and circumstances in which the vehicle is at rest.

(4) Regulations made under this section may prohibit any person, other than a constable or any other person authorised as mentioned in subsection (5)(a) of this section,—

- (a) from carrying out, or attempting to carry out, any repair or adjustment of any such vehicle as is mentioned in the last preceding subsection except with permission expressly given by a constable or by a person so authorised, and
- (b) from moving, or attempting to move, any such vehicle from the position in which it is at rest ;

and the regulations may prohibit persons authorised as mentioned in subsection (5)(a) of this section from carrying out, or attempting to carry out, any repair or adjustment of any such vehicle except in such circumstances as may be specified in the regulations.

(5) Regulations under this section—

- (a) may include provision for empowering a constable or any other person authorised in that behalf by or under the

regulations to remove any such vehicle as is mentioned in subsection (1)(b) of this section from its position on the central section of the specified carriageways either—

- (i) on to a verge beyond the limits of that section of those carriageways, or
 - (ii) to any space provided by the Minister in the vicinity of those carriageways for accommodating such vehicles, or
 - (iii) with the consent of the person in charge of the vehicle, to the premises of any person operating such a service as is mentioned in section 12(1) of this Act;
- (b) in the case of any such vehicle which is so removed, or which at the request of the person in charge of it is repaired or adjusted (instead of being removed) by a person so authorised, may include provision for requiring such person as may be prescribed by the regulations to pay, to the person effecting the removal, repair or adjustment, a charge of an amount to be determined in accordance with such scales and other provisions as may be contained in the regulations; and
- (c) may prohibit any person from obstructing any action taken by a constable or by any other person authorised as mentioned in paragraph (a) of this subsection for the purpose of removing any such vehicle from the central section of the specified carriageways.

(6) Different provision may be made under this section in relation to different classes of vehicles and in relation to different circumstances.

(7) In this section “breakdown”, in relation to a vehicle, includes mechanical defect, lack of fuel, oil or water required for the vehicle, and any other circumstances in which a person in charge of the vehicle could not immediately, safely, and without damage to the vehicle or its accessories, drive it under its own power along the specified carriageways to a point beyond the central section of those carriageways and on to a verge.

Special traffic
restrictions
on specified
carriageways,
1960 c. 16.

8.—(1) In relation to the specified carriageways, the power conferred by subsection (2) of section 36 of the Road Traffic Act 1960 (temporary prohibition or restriction of traffic on roads) shall be exercisable either—

- (a) as mentioned in that subsection (that is to say, by notice given by the Minister as highway authority), or
- (b) by a constable or by any person authorised in that behalf by the Minister.

(2) Where that power is exercised in accordance with paragraph (b) of the preceding subsection, it may be exercised either by notice or by such other means as the person exercising the power considers appropriate for communicating the prohibition or restriction to persons affected by it; and subsection (3) of the said section 36 shall apply in relation to any such communication, other than a notice, as it applies in relation to a notice given under subsection (2) of that section.

(3) In relation to the specified carriageways, the power conferred by section 37 of the Road Traffic Act 1960 (traffic regulation on special roads) shall include power, by regulations made under that section, to prohibit, or to empower any person authorised in that behalf in pursuance of the regulations to prohibit, the use of the specified carriageways by any particular vehicle, or by vehicles of any particular class or description, either generally, or in particular circumstances, or unless particular requirements imposed by or under the regulations are complied with.

9.—(1) The Minister may by regulations impose such prohibitions and restrictions as he may consider necessary—

Prevention of damage.

- (a) for preventing damage to any part of the new road to which this section applies, or to any structure, works or apparatus on, under or over any such part of that road or used in connection with the regulation of traffic on any such part of that road or in connection with the levying of tolls;
- (b) for preventing notices and signs placed on or near any such part of the new road, or on any such structure, works or apparatus, in connection with the regulation of traffic on any such part of that road or in connection with the levying of tolls from being removed, defaced or obscured.

(2) This section applies to all those parts of the new road (including the specified carriageways) which lie between the points specified in paragraphs (a) and (b) of section 1(3) of this Act.

Ferries

10.—(1) Any person who claims to be the owner or reputed owner of a franchise to operate a ferry across the River Severn in the vicinity of the new road may apply to the Minister under this section for the extinguishment of the franchise.

Extinguishment of ferry franchises.

(2) For the purposes of this section it shall not be necessary to prove the existence or origin of the franchise to which any

such application relates ; but the Minister may entertain the application on being satisfied that, if such a franchise exists,—

- (a) the applicant is the owner or reputed owner of it, and
- (b) if his interest in the franchise (whatever that interest may be) is in reversion expectant upon the termination of another interest therein, that other interest will have come to an end (whether by effluxion of time, surrender, merger or otherwise) before the date on which it is proposed that the franchise should be extinguished.

(3) Where the Minister entertains an application under this section, he shall give public notice of the application in such manner as he thinks best adapted for informing persons affected by it: and any such notice shall specify a period (not being less than twenty-eight days from the date of first publication of the notice) within which any person may make representations in writing to the Minister with respect to the application, and the Minister shall consider any such representations received by him before the end of that period.

(4) If on any such application the Minister is satisfied that, in consequence of the provision of the new road,—

- (a) the need for the use of the ferry by the public has ceased to exist or has been substantially diminished, and
- (b) a continuing duty to maintain and operate the ferry would be unduly onerous,

and that in the circumstances it is just and equitable that the franchise should be extinguished, the Minister may make an order under this section.

(5) An order under this section shall refer to the application made in pursuance of subsection (1) of this section, and shall direct that any franchise to which that application relates shall be extinguished as from a date specified in the order ; and on that date any right of the public to use the ferry to which the order relates, any duty to operate the ferry, and any right to demand or take tolls in respect of the ferry, shall cease to have effect.

Compensation
for ferry
operators.

11.—(1) If, on or after the date on which the new road becomes open for use as a special road, and in consequence of the provision of that road, The Old Passage Severn Ferry Company Limited (in this section referred to as “the ferry operators”) discontinue the operation of the ferry across the River Severn in the vicinity of the new road which was being operated by them immediately before the passing of this Act, the Minister shall pay to the ferry operators the sum of £90,000.

(2) The payment of that sum (being an agreed sum by way of compensation) shall have effect in full satisfaction and discharge of all rights and claims of the ferry operators against the Minister, whether accrued or accruing before or after the payment.

Supplementary provisions

12.—(1) The Minister may make such arrangements as he may consider appropriate with any other person (in this section referred to as a “contractor”) for securing the operation by the contractor of a service of removing such vehicles as are mentioned in section 7(1)(b) of this Act from the central section of the specified carriageways, or, if he thinks fit, may himself provide such a service. Provision of removal service.

(2) In respect of the removal of any vehicle by a contractor in pursuance of any such arrangements, or (if the service in question is provided by the Minister) in respect of the removal of any vehicle from the central section of the specified carriageways by the Minister, a fee shall be payable by the chief officer of police to the contractor or to the Minister, as the case may be; and the amount of the fee, in the case of any vehicle, shall be an amount equal to the charge prescribed, in relation to that vehicle, by the regulations made under section 7 of this Act.

(3) Where a vehicle which, in pursuance of any such arrangements, is required to be removed by a contractor is, in accordance with regulations made under section 7 of this Act, repaired or adjusted (instead of being removed) by the contractor or a person employed by him, the provisions of the last preceding subsection shall have effect as if the vehicle had been removed by the contractor in pursuance of the arrangements.

13. Any person who—

Offences.

- (a) wilfully refuses, or without reasonable excuse neglects or fails, to pay a toll which he is required to pay under this Act, or wilfully avoids payment of any such toll, or
- (b) wilfully and with intent to defraud claims or takes the benefit of any exemption from the tolls (whether the exemption in question subsists by virtue of section 2(5) of this Act or otherwise) without being entitled to that benefit, or
- (c) in circumstances not falling within either of the preceding paragraphs, contravenes any regulations made under this Act,

shall be guilty of an offence and liable on summary conviction to a fine not exceeding £20.

Civil
proceedings.

14.—(1) Without prejudice to any proceedings under the last preceding section, any toll which remains unpaid after it has become due for payment shall be recoverable by the Minister from the person liable to pay the toll.

(2) Any charge payable by virtue of any regulations made under section 7 of this Act, if it is not paid at the time and to the person prescribed by the regulations, shall be recoverable by the chief officer of police.

(3) In England and Wales or in Northern Ireland, any sum recoverable from any person under this section (whether that sum represents one toll or charge or two or more tolls or charges)—

(a) if the sum exceeds £20, may be recovered as a simple contract debt in any court of competent jurisdiction, and

(b) in any other case, may be recovered either as mentioned in the preceding paragraph or summarily as a civil debt.

Use of cycle
track or
footway in
emergencies.

15.—(1) If, by reason of any accident or other emergency, vehicles constituting traffic of Classes I and II use the cycle track or the footway, being authorised to do so by or under any enactment,—

(a) the like tolls shall (subject to any direction given under section 6(4) of this Act as applied by this subsection) be leviable in respect of their use of the cycle track or footway, as the case may be, as would be leviable in respect of them if they were using the specified carriageways, and

(b) the provisions of this Act other than this section, and of any order or regulations made under this Act, shall have effect (subject to any necessary modifications) in relation to those vehicles as if any reference to the specified carriageways, or to the central section of the specified carriageways, were a reference to so much of the cycle track or the footway as is authorised to be used as mentioned in this subsection:

Provided that so much of any regulations made under section 7 of this Act as relates to reporting any matter as mentioned in subsection (3) of that section shall not apply by virtue of this section.

(2) In this section—

(a) “the cycle track” means that part of the new road which, in accordance with the order referred to in section 1(4) of this Act (as varied by any such scheme

as is therein mentioned), has been or is to be provided for the use of traffic of Classes VII, X and XI, together with so much of any connecting special road as, in accordance with the relevant scheme, has been or is to be provided for the use of traffic of those classes, and

- (b) "the footway" means that part of the new road which, in accordance with that order (as so varied), has been or is to be provided for the use of pedestrians and other traffic of Class IX, together with so much of any connecting special road as, in accordance with the relevant scheme, has been or is to be provided for the use of traffic of that class;

and in this subsection "connecting special road" means a special road provided or to be provided in connection with the new road in pursuance of a scheme (in this subsection referred to as "the relevant scheme") made under Part II of the Highways Act 1959.

1959 c. 25.

(3) Any reference in this section to a class of traffic is a reference to that class as specified in Schedule 4 to the Highways Act 1959.

16.—(1) Without prejudice to the generality of any powers conferred by or under section 11 or section 13 of the Highways Act 1959 (which relate to schemes for the provision of special roads and supplementary orders relating to such roads), the Minister shall have power to provide and maintain—

- (a) such structures, works and apparatus on or near the specified carriageways as he may consider necessary or expedient in connection with the levying of tolls;
- (b) if in the opinion of the Minister it is required, a space in the vicinity of the specified carriageways for accommodating vehicles which have been removed from those carriageways in pursuance of section 12 of this Act.

(2) The provisions of the Highways Act 1959 (other than sections 11 and 13 thereof) shall have effect in relation to the powers conferred by the preceding subsection as if—

- (a) they were conferred by an order under section 13 of that Act, and
 - (b) in relation to the new road, any reference in that Act to the use of a special road included a reference to the levying of tolls and the removal and accommodation of vehicles as mentioned in subsection (1)(b) of this section,
- and in particular section 215 of that Act (additional powers of acquiring land for trunk roads and special roads) shall apply accordingly.

Local
authority
as agents or
contractors.

17.—(1) Any local authority may enter into an agreement with the Minister whereby the local authority will, as agents of the Minister, perform such services and provide such facilities as may be specified in the agreement in connection with the levying of tolls ; and, if any such agreement is made, the local authority may perform those services and provide those facilities accordingly.

(2) Any local authority may enter into an agreement with the Minister for the operation of such a service as is mentioned in section 12(1) of this Act ; and, if any such agreement is made, the local authority may operate such a service and provide any facilities required in connection with it.

(3) Any such agreement as is mentioned in either of the preceding subsections may contain such terms and conditions (whether as to payment or otherwise) as the Minister and the local authority may consider appropriate.

(4) In this section “local authority” means the council of a county or county district.

Application
of Act to
Crown.

18.—(1) Subject to subsection (3) of this section, the provisions mentioned in the next following subsection shall have effect in relation to—

(a) vehicles belonging to, or used for the purposes of, a government department, and

(b) things done, or omitted to be done, in connection with such vehicles by persons in the public service of the Crown,

as they have effect in relation to vehicles which neither belong to nor are used for any purposes of the Crown and to persons who are not in the public service of the Crown.

(2) The provisions referred to in the preceding subsection are—

(a) section 7 of this Act and any regulations made under that section ;

(b) subsections (1) and (2) of section 8 of this Act ;

(c) section 13 of this Act in so far as it relates to contravention of any regulations made under section 7 of this Act ;

(d) subsections (2) and (3) of section 14 of this Act ; and

(e) any of the provisions mentioned in the preceding paragraphs as applied by section 15 of this Act.

(3) Regulations made under section 7 of this Act may provide that, in their application in relation to—

(a) vehicles belonging to the Crown and used for naval, military or air force purposes, and

- (b) vehicles used for the purposes of any such body, contingent or detachment of the forces of any country as is a visiting force for the purposes of any of the provisions of the Visiting Forces Act 1952, or used for the purposes of any headquarters or organisation designated by an Order in Council under section 1 of the International Headquarters and Defence Organisations Act 1964, 1952 c. 67. 1964 c. 5.

the regulations shall have effect subject to such exceptions and modifications as may be specified in the regulations.

(4) Nothing in this Act or in any order made thereunder shall be construed—

- (a) as derogating from any exemption or immunity conferred by any enactment not contained in this Act, or
- (b) as implying that any enactment contained in this Act binds the Crown,

except as provided by the preceding provisions of this section.

(5) In this section “government department” includes any Minister of the Crown.

19.—(1) Any power conferred by this Act to make an order shall be exercisable by statutory instrument, and shall include power to vary or revoke the order by a subsequent order. Orders and regulations.

(2) Any instrument containing an order made under section 2 or section 6 of this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Any power to make regulations under this Act shall be exercisable by statutory instrument; and any instrument containing any such regulations shall be subject to annulment in pursuance of a resolution of either House of Parliament.

20.—(1) Any sums paid to any person in respect of tolls shall be taken to be received by that person on behalf of the Minister; and all such sums, and any other receipts of the Minister under this Act, shall be paid into the Exchequer. Financial provisions.

(2) Any expenses incurred by the Minister in consequence of the provisions of this Act shall be paid out of moneys provided by Parliament.

(3) Any charges paid in pursuance of regulations made under section 7 of this Act, or of any such regulations as applied by section 15 of this Act, and any sums recovered by the chief officer of police in respect of any such charges, shall be paid into the police fund for the police area in which the eastern end of the specified carriageways is situated; and any fees payable by the chief officer of police in pursuance of section 12 of this Act shall be paid out of that fund.

1949 c. 101. (4) For the purposes of section 27 of the Justices of the Peace Act 1949 (application of fines and fees, and payment of expenses of courts) all sums paid to the Secretary of State under that section in respect of fines imposed for offences under this Act shall be deemed to be Exchequer moneys.

Annual
accounts.

21.—(1) The Minister shall, in respect of each financial year during which the power to levy tolls continues to be exercisable, prepare a statement of accounts in such form, and containing such particulars, compiled in such manner, as the Treasury may from time to time direct having regard to the provisions of section 4 of this Act.

(2) Any statement of accounts prepared under this section shall be sent by the Minister to the Comptroller and Auditor General not later than the end of the month of November following the end of the financial year to which the statement relates; and the Comptroller and Auditor General shall examine and certify the statement and shall lay copies of it, together with his report thereon, before Parliament.

Interpretation.

22.—(1) In this Act, except in so far as the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

1959 c. 25.

“carriageway” means so much of a special road as is provided for the use of traffic of Classes I and II, as specified in Schedule 4 to the Highways Act 1959;

“the central section of the specified carriageways” means that part of the specified carriageways which does not have a verge at least ten feet wide adjoining each of the carriageways;

“the chief officer of police” means the chief officer of police for the police area in which the eastern end of the specified carriageways is situated;

“the Minister”, “the new road”, “the specified carriageways” and “toll” have the meanings assigned to them by section 1 of this Act;

1960 c. 16.

“special road” has the meaning assigned to it by section 257(1) of the Road Traffic Act 1960; and

“verge” means a part of a special road which is contiguous to a carriageway comprised in that road, but does not form part of the carriageway or lie between two carriageways comprised in that road and is not provided for the use of traffic of Classes VII, X and XI (as specified in Schedule 4 to the Highways Act 1959) or for the use of pedestrians and other traffic of Class IX (as so specified).

(2) Any reference in this Act to Schedule 4 to the Highways 1959 c. 25. Act 1959 is a reference to that Schedule as amended by any order made (whether before or after the passing of this Act) under section 12(3) of that Act which is for the time being in force.

(3) If any such order adds a further class of traffic to those specified in that Schedule as for the time being in force, the order may, if in the opinion of the Minister it would be appropriate to do so, amend any provision of this Act which refers to a class of traffic specified in that Schedule by adding a reference to that further class.

(4) Subject to the provisions of section 33 of the Interpretation Act 1889 (which relates to offences under two or more laws) 1889 c. 63. the restrictions imposed by this Act, or by regulations made thereunder, shall not be construed as—

- (a) conferring a right of action in any civil proceedings (other than proceedings under section 14 of this Act or proceedings for the recovery of a fine) in respect of any contravention of those restrictions, or
- (b) affecting any restriction imposed by or under any other enactment, whether contained in a public general Act or in a local or private Act, or
- (c) derogating from any right of action or other remedy (whether civil or criminal) in proceedings instituted otherwise than under this Act.

(5) The powers conferred by this Act to make regulations shall not be construed as derogating from any power to make regulations under any other Act.

(6) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment.

23.—(1) This Act may be cited as the Severn Bridge Tolls Act 1965. Short title,
and
commence-

(2) This Act shall come into operation at the end of the period of one month beginning with the day on which it is passed. ment.

SCHEDULES

Section 3.

SCHEDULE 1

BODIES TO WHICH SECTION 3(3) APPLIES

1960 c. 16.

1. Any organisation appearing to the Minister to represent to a substantial extent the interests of the general body of owners of mechanically propelled vehicles in England and Wales who are not holders of licences under Part III of the Road Traffic Act 1960 or of A licences or B licences under Part IV of that Act.

2. Any organisation appearing to the Minister to represent to a substantial extent the interests of the general body of persons carrying on road transport undertakings in England and Wales.

3. In the case of any particular order proposed to be made under section 2 of this Act, any organisation (not falling within either of the preceding paragraphs) which appears to the Minister to represent to a substantial extent the interests of owners in England and Wales of a class of vehicles specified, in pursuance of subsection (1) of that section, in the order as prepared in draft.

4. Any organisation appearing to the Minister to represent to a substantial extent the interests of persons engaged in a particular profession, trade or employment who, by reason of that profession, trade or employment, are likely to be frequent users of the specified carriageways.

5. Any organisation appearing to the Minister to represent to a substantial extent the interests of persons carrying on industrial or commercial undertakings in England and Wales generally, or in the locality in which either end of the specified carriageways is situated in particular, whose vehicles used for the purposes of those undertakings are likely to be frequent users of the specified carriageways.

6. Any organisation appearing to the Minister to represent to a substantial extent the interests of persons residing in the locality in which either end of the specified carriageways is situated.

7. Any body corporate appearing to the Minister to have a substantial interest in the use of the specified carriageways by reason of its operating a number of vehicles which are likely to be frequent users of those carriageways.

SCHEDULE 2

Section 4.

PURPOSES RELEVANT TO GENERAL LIMITATIONS ON TOLLS

1. Reimbursement with interest of all expenses properly chargeable to capital account which have before the passing of this Act been, or may after the passing of this Act be, incurred by the Minister in providing the relevant works.

2. Reimbursement with interest of all expenses properly chargeable to capital account which may after the passing of this Act, but before the end of the period specified in subsection (1) of section 4 of this Act, be incurred by the Minister in providing additions to, or improvements of, the relevant works.

3. Defraying all expenses (including administrative expenses) which are properly chargeable to revenue account and are incurred during the toll period by the Minister or by any other Minister of the Crown or government department in, or in connection with, the maintenance, repair or renewal of the relevant works, or of any such addition or improvement as is mentioned in paragraph 2 of this Schedule, or the operation during the toll period of services or facilities provided by the Minister in connection with the relevant works or any such addition or improvement.

4. Making such provision as in the opinion of the Minister is adequate for defraying the expenses properly chargeable to revenue account which are likely to be incurred in, or in connection with, continuing after the end of the toll period to maintain, repair and renew the relevant works and any such addition or improvement and continuing after the end of that period to operate services or facilities provided by the Minister in connection with the relevant works or any such addition or improvement.

5. Making such provision as in the opinion of the Minister is equivalent to that which would be required for keeping the relevant works and any such addition or improvement insured (both during and after the toll period) if they were owned and maintained by a commercial undertaking.

6. Defraying all expenses (not falling within any of the preceding paragraphs) which are incurred by the Minister in consequence of the provisions of this Act.

7. Provision for interest on any deficiency which may arise during the toll period in the revenue produced by the tolls as compared with the amounts required to be raised by the tolls for fulfilling the purposes specified in paragraphs 1 to 6 of this Schedule.